

TERMS AND CONDITIONS · ISSUED WITH YOUR LOAN VEHICLE FORM

Test Drive & Loan Agreement

BM-TDLA · Client pack

Please read these terms before completing the loan vehicle form. They apply whenever Booran Motors lends you a motor vehicle for a test drive or as a courtesy / loan vehicle. Your acknowledgement is collected digitally in the app — keep this copy with your agreement.

The dealership is involved in the distribution and sale of motor vehicles and is prepared to lend the Borrower a motor vehicle on the following terms.

In consideration of the Dealership providing, at the Borrower's request, a motor vehicle (details of which appear below) to the Borrower for the period below, the Borrower covenants as follows:

1. The Borrower shall not lend, sell or encumber the vehicle for any purpose whatsoever.
2. The Borrower shall not allow any person to drive the vehicle, other than a person authorised in writing by the Dealership.
3. The Dealership may require, in any manner and at any time, the immediate return of the vehicle by the Borrower.
4. The Borrower shall not drive the vehicle outside the State of Victoria.
5. At the expiration of the loan period, or when required to return the vehicle to the Dealership, the Borrower shall return it in the same condition as the vehicle was provided, subject to reasonable wear and tear.
6. The Borrower shall indemnify and keep the Dealership indemnified for any loss or damage whatsoever caused to the motor vehicle which occurs whilst it is:
 - a. in the control of or driven by a person other than the Borrower or a person authorised in writing by the Dealership or which arises out of the use of the vehicle by such person
 - b. in the control of or driven by any other person (including the Borrower) under the influence of any drug or intoxicating substance or in whose blood there is a percentage of alcohol in excess of the legal limit in the State where the Dealership is located, or refusing a test to determine alcohol or drug levels in the blood
 - c. being used in any race, contest or illegal purpose
 - d. being used to convey any load other than that for which the vehicle was constructed.
7. The Borrower shall indemnify the Dealership for any fines or penalties whatsoever or howsoever incurred whilst the vehicle is in the custody of the Borrower.
8. The Borrower shall indemnify the Dealership for any damage or loss whatsoever or howsoever caused to or by the vehicle which occurs in the reasonable opinion of the Dealership was caused or contributed to by the Borrower.
9. The Borrower will be liable for any loss incurred by the Dealership (including, but not limited to, the full cost of the vehicle) in the event of the theft of the vehicle where the Borrower has:
 - a. left the vehicle unlocked while unattended; or
 - b. left the keys unattended either in the vehicle or otherwise.
10. If any of the above occurs please contact the Dealership immediately.

11. If the Borrower is found to be at fault of any accident, the Borrower is liable for the Insurance excess as follows:

Description	Amount
A Basic Excess	\$2,500
B Additional Age Excess for drivers under 21	\$1,250.00
C Additional Age Excess for drivers aged 21–25	\$750
D Additional Excess for drivers over 25, licensed less than 2 years in Australia	\$750

12. Any damage caused to the vehicle whilst in the custody of the Borrower, which is not subject to an insurance claim, will become the liability of the Borrower.
13. Vehicles must remain on sealed roads at all times.
14. Please refrain from smoking, vaping, drinking or eating in or on the vehicle.
15. Please refrain from transporting pets or animals in or on the vehicle.
16. Vehicles must be returned by no later than 5:00pm on the agreed day and a daily usage limit of 50km applies. Any excess kilometres travelled may be subject to a 50c per kilometre charge.
17. Any tolls/road usage charges, fines or infringements are the responsibility of the Borrower.
18. You acknowledge that your personal information is collected so that we can: provide you with an interest rate quote based on your individual profile, which includes credit score to assess your loan application if you proceed, to let you know about any products and services that may be of interest to you, or for any other purpose specified in our privacy policy.

Personal information collected in connection with this agreement is handled in accordance with the enclosed **Booran Motors Privacy Policy**. By completing the loan vehicle form in the Booran Motors app, you confirm you have received and read these terms. Questions: (03) 8792 9236 or 25 Lonsdale St, Dandenong VIC 3175.